

HB 3220 -- DRIVING OFFENSES COMMITTED BY YOUNG DRIVERS

SPONSOR: Jones (12)

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Crime and Public Safety by a vote of 11 to 3. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 10 to 1.

Currently, for an applicant to receive his or her temporary instruction permit, a parent must give written permission stating that the parent or a designee will provide the applicant with 40 hours of behind-the-wheel driving instruction, including a minimum of 10 nighttime hours.

The bill requires the parent to state that he or she will provide and document the 40 hours of instruction.

This bill prevents intermediate drivers, any person under 21 years of age, and any person who was granted adult driver's license privileges and has held the adult license for fewer than 36 consecutive months without a violation for which points are assessed from getting a traffic violation reduced to a different violation that puts fewer points or no points on the driver's license.

Beginning January 1, 2027, this bill requires all driver's license applicants under 21 years of age who have never held a driver's license to complete an approved driver's education program.

The bill establishes the Driver's Education Training Fund. The State Treasurer will be the custodian of the Fund. The Fund will be used only by the Missouri Highways and Transportation Commission to fund driver's education programs.

Currently, license applicants are asked whether they would like to make a donation to promote an organ donor program, blindness education, screening and treatment program, or the medal of honor recipients fund. This bill adds the Driver's Education Training Fund to this list. The donation is voluntary.

The bill raises the price of an intermediate license from \$5.00 to \$10.00.

Drivers holding an intermediate driver's license who receive more than two non-alcohol-related violations or violations totaling six points or more will have their license converted to a temporary learner's permit and must complete a driver's education program to reinstate their license with a partial reduction of points. If a violation by an intermediate driver involves alcohol or is worth at least 12 points, their license will be revoked or suspended.

Currently, a violation relating to intermediate licenses is punished as an infraction and does not result in points being assessed to an individual's driving record. The bill repeals these provisions.

Starting January 1, 2027, applicants for a driver's license who are under 21 and have never held a license must complete a driver's education program that is approved by the Missouri Highways and Transportation Commission within the 90 days before the application. The Department of Transportation will establish agreements with public or private institutions to provide the driver's education programs free of charge to these applicants. The bill establishes procedures for certification of driver's education programs and specifies requirements that must be met. The Department of Transportation can make rules to implement the programs. An approved driver education class in a school can fulfill the driver education program requirement.

This bill also alters point values assessed and descriptions of violations in Section 302.302, RSMo. Twelve points will be assessed automatically when serious injury or death results from any listed violation. Leaving the scene of an accident in violation of any county or municipal ordinance increases from six to 12 points.

Currently, when a violation for speeding, careless and imprudent driving, leaving the scene of an accident, or driving under the influence constitutes a violation under both state law and either county or municipal ordinance, points can be assessed for either violation but not both

The bill requires points be assessed for the highest violation.

Currently, points can be reduced or stayed from applying to a driver's license via completion of a driver-improvement program.

The bill limits this system to a partial reduction of points and requires online courses to be proctored.

Currently, a court may use a centralized violation bureau and, if it does, it may elect to have the bureau order and verify completion of driver safety courses ordered by the court.

This bill requires the court to elect to make this delegation to the centralized violation bureau.

This bill is similar to HB 1339 (2025).

PROPOSERS: Supporters say that this is accountability in public safety, namely for young drivers who violate the law. With driving privileges comes responsibility and young drivers who violate the law need to feel the real world consequences for this unsafe behavior. The bill clarifies who may supervise a permit driver as well as the assessment process for traffic violations. The state needs comprehensive driver education training with behind-the-wheel instruction because it will sharpen skills and teach young people under 21 how to drive safely. One witness's husband was killed by a teen who had four violations within seven months but no points on his license. It has not been as easy in the last few decades to obtain this comprehensive training. Missouri already restricts driving privileges for those over 70, so they should be doing the same for teens. Missouri is one of 13 states that do not require teens to receive any formal training before obtaining a license, and only a few high schools offer this type of training. Teens who do not receive formal training are 80% more likely to be in car crashes and this can lead to increased insurance premiums. Motorcycle riders are killed frequently by people who have not received this type of training. Those who don't drive are usually the most vulnerable in these accidents. The pedestrian fatality rate has also increased over the previous record, which was in 2024. Driver's education teaches critical thinking and that is why driver's education is so necessary.

Testifying in person for the bill were Representative Jones; Dorinda D Padgett; Kimberly St Clair, Doc Dash; Tony Shepherd, Abate For Missouri; Nick Chabarria, AAA Missouri; Deanna Rhodes-Widmer; Jackson Hotelling, Missourians For Responsible Transportation; and Arnie C. Dienoff.

OPPOSERS: There was no opposition voiced to the committee.

OTHERS: Others testifying on the bill say there has been a decrease in crashes in the state of 5% in 2025 but, still, more than 900 people died in car accidents and about 16% were drivers

younger than 21 years old. There is not enough training or time behind the wheel and this creates a safety issue. Driver education programs can help bridge that gap. Providing programs does come with costs, which are approximately \$350,000 to \$850,000 depending on the thoroughness of the program and how many schools would be involved.

Testifying in person on the bill was Jon Nelson, MoDot.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.